

	<i>Trust vs. JMI Trading Inc.</i> 2026-01570438	
11.	<i>Signature Collection Properties, LLC vs. Academy West Investments, LLC</i> 2021-01206266	OFF CALENDAR based on notice of withdrawal of motion filed on July 27, 2026.
12.	<i>Ford Motor Credit Company, LLC vs. Manukyan</i> 2011-00457348	Before the court is the motion to vacate the judgment defendant Larisa Manukyan (Defendant) filed on June 4, 2026. Pursuant to Code of Civil Procedure section 683.170, Defendant seeks to vacate the renewed judgment entered on April 1, 2021, which renewed the default judgment entered against Defendant and in favor of plaintiff Ford Motor Credit Company, LLC (Plaintiff) on June 23, 2011. As more fully set forth below, the motion is DENIED. First, the motion is untimely. On this motion, Defendant bears the burden to prove by a preponderance of the evidence that she is entitled to vacate the renewal of judgment under Code of Civil Procedure section 683.170. (<i>American Contractors Indemnity Co. v. Hernandez</i> (2022) 73 Cal.App.5th 845, 848.) Based on the evidence presented, Defendant has not met that burden. Defendant asserts she never received the notice of renewal Plaintiff filed on April 8, 2021, and claims to have served on Defendant on April 14, 2021. (ROA 36, Manukyan Decl., ¶ 13.) On April 6, 2026, Plaintiff filed a proof of service showing it mailed the application for and now of renewal of judgment to Defendant at an address on Cypress Street in Glendale, California on April 14, 2021. On or about April 6, 2026, Plaintiff also filed in the Los Angeles Superior Court action a declaration by the person who mailed the notice of renewal to Defendant confirm that mailing. (ROA 34, Ex. F; ROA 40.) Defendant does not dispute the Cypress Street address to which the notice of renewal was sent is her address and has been since December 2016 as she confirmed in the identify theft affidavit she presented to the Glendale Police Department and attached to her opposition. Instead, Defendant simply offers her own declaration denying receipt of the notice of and application for renewal of judgment. As stated, Plaintiff has offered a proof of service

		and an additional declaration by the person who served the notice confirming the service. Accordingly, there is a factual dispute as to whether the notice of renewal was sent and received in April 2021. The court, however, finds Defendant and her explanations and claims to be lacking in credibility because, inter alia, her statements are inconsistent and conclusory, she offers little to no evidence to corroborate her claims and denials, and some of assertions simply do not add up or make sense. For example, she asserts the address where substitute service of the complaint in this action was effectuated on her back in April 2011 was not her address, and she does not know the person with whom the summons and complaint were left to effectuate that service. The proof of service (ROA 6) identifies that person as "Spartik Akopyan," a co-occupant. Plaintiff, however, has presented evidence to show, and Defendant has confirmed in discovery responses in another case, that "Spartak Hakobyan" is her son. (ROA 46, ¶ 14; ¶27, Exh. 24, interrogatory no. 20.) On reply, she has not attempted to dispute the person who was sub-served on her behalf was in fact her son, she has not indicated she inquired of him about the service, and she has not presented any declaration from him relating to or otherwise disputing the service. Defendant also has failed to state where she actually lived in 2011 if not at the service address, and she has failed to address her apparent connection to the address where her son was sub-served on her behalf. Defendant also asserts she first learned of the judgment at issue in November 2023. But Plaintiff has presented evidence to showing this is not true. (ROA 46, ¶¶ 14-17.) Specifically, Plaintiff's counsel presented evidence it received a three-way call from Defendant on September 25, 2023, authorizing counsel to speak with her son (Spartak Hakobyan) and Don Peteete about the judgment and counsel thereafter had many conversations with Mr. Poteete during September and October 2023—i.e., before Defendant allegedly learned of the judgment. Defendant presents no evidence with the reply to rebut this evidence. There are other inconsistencies in Defendant's assertions and matters that simply do not add up for her version of events. For example, in the identity theft affidavit she submitted to the Glendale Police Department, Defendant states she has lived at the Cypress Street address since December 2016, but then on the same page she states she
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		lived at the same address at the time of the fraud. The allegedly fraudulent contract underlying Plaintiff claim was entered into in December 2007 and the default Judgment was entered against Defendant in June 2011. Accordingly, if Defendant has only lived at the Cypress Street address since December 2016, she could not possibly live there at the time of the fraud. Based upon the totality of the circumstances and evidence, including but not limited to the foregoing, the court does not find Defendant's assertion she did not receive the application for and notice of renewal of the judgment in April 2011. Any motion to vacate a renewed judgment under section 683.170 must be brought within 60 days of the defendant/judgment debtor being served with notice of the renewal. (Code Civ. Proc., § 683.170, subd. (b).) Defendant did not serve this motion until more than five years after she was served with notice of the renewal. Defendant also argues, even if she was served in April 2021 with notice of the renewal, this motion is still timely as the corresponding proof of service was not filed until April 2026. She asserts, under Code of Civil Procedure sections 683.160(a) and 683.170(b), the filing of that proof of service is an essential step to trigger the 60-day motion deadline. Defendant is mistaken. Code of Civil Procedure section 683.160, subdivision (a), requires the notice of renewal to be on a Judicial Council form and notify the judgment debtor they have 60 days to challenge the renewal. That shows the 60 days runs from service of the notice, not the filing of the proof of service. The statutes do not set a deadline for filing the proof of service or otherwise indicate the renewal is invalid without a proof of service. Rather, the statutes simply provide no writ of execution may be issued or enforcement proceedings commenced until proof of service is filed. (Code Civ. Proc., § 683.160, subd. (b).) This conclusion is confirmed by the caselaw: "[T]here is no statutory requirement that the notice of renewal be served on the judgment debtor in order for the renewal to be effective. (See § 683.160.) 'Service on the judgment debtor is not necessary to renew the judgment. However, no writ of execution can issue on the renewed judgment until proof of service of the Notice has been filed with the court clerk. Nor, pending filing of proof of service, may the judgment creditor commence any other enforcement proceeding (e.g., examination of judgment debtor), unless it would have been available under the nonrenewed original
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		judgment. [CCP § 683.160(b)].’ (Ahart, Cal. Practice Guide: Enforcing Judgments and Debts, supra, ¶ 6:78, pp. 6A–41 to 6A–42.) <u>Thus, there is no specified time period within which the renewal of judgment must be served on the judgment debtor. The statute instead provides that the judgment creditor may not initiate any enforcement proceedings unless and until the judgment debtor has been served with the notice of renewal.” (Goldman v. Simpson (2008) 160 Cal.App.4th 255, 262, fn. 4 (underlining added).)</u> Accordingly, the court finds Defendant’s motion is untimely. Moreover, even if the court could properly and were to construe the motion as one attacking the underlying judgment as void for lack of proper service, the court would deny the motion because, as explained above, the court finds Defendant’s claims she was not served with the summon and complaint or the notice of renewal lacking in credibility. Based on the foregoing, the motion is DENIED. Defendant’s Request for Judicial Notice (ROA 34) is GRANTED under Evidence Code section 452(d) as to the existence of the records, but not as to the truth of any disputed facts asserted therein. (<i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Plaintiff is to give notice of this ruling.
13.	Seton Hall University vs. Spitz 2026-01555640	Before the court is the special motion to strike pursuant to Code of Civil Procedure section 425.16 filed by respondent Eric Spitz (Respondent) directed to the petition to enforce deposition subpoena filed by petitioner Seton Hall University (Petitioner). For the reasons set forth below, the motion is DENIED. Initially, the court notes Respondent’s opening brief is 20 pages and thus exceeds the 15-page limit set by California Rules of Court, rule 3.1113, subdivision (d). Respondent’s ex parte application to file an overlength memorandum was denied based on Respondent’s failure to follow proper procedures for making such request and his failure to make an adequate showing justifying such relief. (ROA 78.) Based on the foregoing, the court exercises its discretion and declines to consider the last five pages of Respondent’s opening brief. (See Cal. Rules of Court, rules 3.1113(g), 3.1300(d).) Given the court’s conclusion below that Respondent failed to establish section 425.16 applies,